

Combined Synopsis/Solicitation

NOTICE: Solicitation number HT940626QB001 is issued as a request for quote (RFQ)

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the Revolutionary FAR Overhaul (RFO) FAR Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number HT940626QB001 is issued as a request for quote (RFQ) for Newborn Screening Services.

This acquisition is not set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The NAICS code is 621511, with a business size standard of \$41.5M.

The Defense Health Agency Contracting Activity, Healthcare Contracting Division - Southeast is acquiring on behalf of Military Treatment Facility (MTF), Naval Medical Center Portsmouth, Virginia. The proposed action is to award a firm fixed price contract on a sole source basis to provide non-personal services to support the Newborn Screening program for military beneficiaries located at the MTF that have labor and delivery units. A single award contract to the state government department is appropriate as there is only one contractor that provides the applicable services.

Competition Approach: Other than Full and Open Competition, RFO FAR 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

Newborn Screening is recognized nationally as an essential preventive public health measure established under Public Health Service Act, Title XI, § 1109 (42 U.S.C. 300b-10), as amended by the Newborn Screening Saves Lives Reauthorization Act of 2019 (H.R. 2507) was originally put into place in 2008, was amended in 2014 and was amended and passed by the House of Representatives of the United States of America Congress on 24 July 2019. With the Newborn Screening Saves Lives Reauthorization Act of 2019, funding was authorized through fiscal year 2024. Currently, the Newborn Screening Saves Lives Reauthorization Act of 2025 (H.R. 4709) has been introduced to Congress for approval as this act remains vital and necessary for early detection which can promote healthier lifestyles. Newborn screening is a well-established and proven health program that identifies newborns with certain genetic, metabolic, hormonal and functional conditions. With the early detection afforded by Newborn Screening, affected infants receive prompt treatment, which can prevent permanent disability, developmental delay and even death. A vital part of a successful screening program is appropriate medical intervention for positively tested babies. For some of the disorders screened, this intervention may require urgent or even emergent medical care for the identified baby. It is therefore critical to coordinate notification of abnormal results to healthcare providers to ensure appropriate intervention is initiated.

Period of Performance for Naval Medical Center Portsmouth, Virginia:

Base Period: 01 May 2026 through 30 April 2027

Option Period 1: 01 May 2027 through 30 April 2028

Option Period 2: 01 May 2028 through 30 April 2029

Option Period 3: 01 May 2029 through 30 April 2030

Option Period 4: 01 May 2030 through 30 April 2031

Incorporated provisions and clauses are listed under Clauses Incorporated by Reference and Clauses Incorporated by Full Text.

System for Award Management (SAM): In accordance with RFO FAR 4.1102 Policy, Offerors shall be registered in the SAM database in order to be eligible for contract award. No award will be given to an Offeror not registered. Registration can be accomplished at <https://sam.gov/content/entity-registration>.

Registration in this database shall remain active.

Annual Representations and Certifications: In accordance with RFO FAR 4.1201 Policy, Offerors shall complete electronic annual representations and certifications within SAM as part of required registration. Registration in this database shall remain active and can be accessed at <https://sam.gov/content/entityregistration>.

Award without Discussions: The Government intends to award without discussions; offerors should submit their best prices in their initial offer. If RFO FAR Provision 52.212-2 Evaluation-Commercial Products and Commercial Services is included, Offerors must submit all information requested therein in order for the Government to determine technical acceptability.

Amendments: The Offeror shall, without exception, submit acknowledgement of all amendments issued to this solicitation.

Payment: Payment for this action will be made by Electronic Funds Transfer (EFT) through the Defense Finance and Accounting Services (DFAS) utilizing Wide Area Workflow (WAWF). See DFARS 252.232-7006 Wide Area Workflow Payment Instructions for more information.

Period for Acceptance of Offers: The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers.

DPAS: This acquisition is rated under the Defense Priorities and Allocations System (DPAS) as: N/A

Contact Information: A Contracting Officer's Representative (COR) will be appointed at the time of award. The successful Offeror will be furnished with the COR name and contact information at the time of contract award.

Offerors shall clearly demonstrate their ability to meet the requirements and deliverable schedule as outlined in the associated solicitation.

As set forth in RFO FAR 52.212-1 (d), Contract award, the Government intends to evaluate offers and award one contract without discussions with offerors. The offerors' initial offer should contain the offerors best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines it necessary.

An interested party filing a protest with Defense Health Agency (DHA) has the option of requesting review by either the Contracting Officer (CO) or an independent review Official (IRO), who is a DHA official at a level above the CO. Alternately, an interested party may request IRO review as an appeal of the CO's protest decision.

Where applicable, an interested party must clearly state in the protest that IRO review is requested and must specify the nature of the independent review sought –whether as an alternative to CO review or as an appeal of the CO's decision.

Regardless of which review is requested, all protests must be complete and submitted to the CO within the timeframes specified in RFO FAR Subpart 33.1.

Addendum to RFO FAR 52.212-1, Instructions to Offerors

A. SUBMITTAL INSTRUCTIONS

The Offeror is required to submit an offer in accordance with these instructions, providing all required information

in the specified format.

The Government will honor questions regarding this procurement. Should the Offeror choose to submit questions, they must be submitted by email to the Contracting Officer, Mary Shifflett, mary.e.shifflett2.civ@health.mil and the Contract Specialist, Brittany Belsches, brittany.n.belsches.civ@health.mil, no later than 12:00PM EST on 16 March 2026. Any questions received after the deadline will be considered at the discretion of the Contracting Officer.

This requirement is a Sole Source under North American Industry Classification System (NAICS) 621511, Medical Laboratories. The Offeror must submit an offer that is legible and comprehensive enough to provide the basis for a sound evaluation by the Government. Information provided should be precise, factual, and complete. Legibility, clarity, completeness, and responsiveness are important. Offers shall be in the form prescribed by, and shall contain a response to, each of the following.

The offer shall be submitted in two separate volumes:

Volume I – Administrative

Volume II – Price

Both volumes shall be submitted electronically to the Contracting Officer, Mary Shifflett, mary.e.shifflett2.civ@health.mil and the Contract Specialist, Brittany Belsches, brittany.n.belsches.civ@health.mil, no later than 12:00PM EST on 20 March 2026. Both volumes shall be included as attachments within one e-mail. Electronic files shall not contain classified data. Each volume described below shall be prepared as a separate, single file clearly marked with each volume title. Do not use compressed file formats. Submissions shall be virus free. All correspondence shall reference the RFQ number HT940626QB001 in the subject line of the email and all enclosed documents.

Format. All materials shall be in typeface Times New Roman 12 point (or Arial 12 point) and formatted to print on 8.5 x 11" white paper. When creating PDF files, the Offeror shall create the file to enable textual search and copy functions. Offerors shall not lock, encrypt, copy as an image, password protect, or otherwise place barriers to opening files in their offer.

Materials Submitted. The Offeror is advised that all submissions and related material become the property of the Government and will not be returned. The administrative and price offers will form binding parts of the order that result from this solicitation. Therefore, care must be taken to properly address the requirements set forth in this solicitation.

This Solicitation includes the following attachments:

Attachment I – Combined Synopsis-Solicitation HT940626QB001;

Attachment II – Performance Work Statement;

Attachment III – Pricing Sheet; and

Attachment IV- Estimated Volume

In accordance with RFO FAR 52.204-7, the offeror must be registered in System for Award Management (SAM), and shall verify its SAM record is current, accurate, and completed. The offeror shall be registered in the System for Award Management (SAM) database in accordance with RFO FAR 52.204-7. The offeror shall verify its online representations and certifications are current, accurate, complete and applicable to this solicitation as of the date of its offer and are incorporated in its offer by reference. No documentation is required to be submitted for this requirement; the Government will verify the information online.

The offeror shall also be registered in SAM under the applicable NAICS code for this solicitation, 621511, Medical Laboratories. Registration is free and can be completed on-line at <https://sam.gov>. No documentation is required to be submitted for this requirement; the Government will verify the information online.

In accordance with RFO FAR 52.209-11, the offeror must represent that it is/is not a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted

or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, and that it is/is not a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months as of the date of this offer by completing and returning clause RFO FAR 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction Under Any Federal Law.

Specific Instructions by Volume. Offerors shall provide each volume as explained below:

Volume I – Administrative

The offeror shall submit a Small Business Subcontracting Plan in accordance with RFO FAR Clause 52.219-9 and DFARS Clause 252.219-7003 (for reference see RFO FAR 19.704 and DFARS 219.704). The Department of Defense (DOD) has established small business goals as an assistance to ensure small business receives a fair proportion of DOD awards. The small business subcontracting goal for this requirement is 5% of the total contract value. The Government recognizes that these goals are stated as a percentage of the total contract value for the small business participation plan; whereas, the goals included in the subcontracting plan (RFO FAR Clause 52.219-9) are stated in terms of a percentage of total subcontract dollars. Master subcontracting plans can be included as an appendix to the subcontracting plan. The offer shall include the name of any proposed subcontractors and any applicable references. **If the offeror believes there are no subcontracting possibilities, the offeror shall submit documentation sufficient to support its position.**

Volume II - Price

The offer shall include pricing submitted using an Excel worksheet titled “Pricing Worksheet for HT940626QB001” provided as Attachment III. The pricing worksheet shall be completed in its entirety. The offeror shall provide available price lists or copies of applicable state regulations that guide/affect pricing. Submission of 2 to 3 redacted invoices showing pricing charged is requested to assist the Government in making a fair and reasonable determination.

Addendum to RFO FAR 52.212-2 Evaluation—Commercial Products and Commercial Services (Nov 2021)

THIS SECTION IS FOR COMBINED SYNOPSIS/SOLICITATION PURPOSES ONLY. THIS SECTION WILL BE PHYSICALLY REMOVED FROM ANY RESULTANT AWARD BUT WILL BE DEEMED INCORPORATED BY REFERENCE. THIS ADDENDA SUPPLEMENTS RFO FAR 52.212-2.

The Government intends to evaluate the offer and award a single contract without discussion. The Government reserves the right to conduct discussions if the Contracting Officer determines them to be necessary. The award decision will consider non-price factors and price factors equally. In order to be eligible to receive an award the offer must pass all elements of Volume I and the pricing contained in Volume II must be determined reasonable.

Volume 1 – Administrative.

Volume I will be evaluated to ensure that the offeror is registered in SAM under the applicable NAICS code, 621511 (Medical Laboratories), and the SAM record is accurate and complete. The offer shall include the name of any proposed subcontractors and any applicable references. Offers shall be clearly and concisely written as well as being neat, indexed and logically assembled. All pages of each volume shall be appropriately numbered and identified with the name of the offeror, the date, and the solicitation number. Complete offers shall include all necessary information dictated in the Addendum to RFO FAR 52.212-1, Instructions to Offerors.

The Small Business Subcontracting Plan will be evaluated in accordance with RFO FAR Clause 52.219-9 and DFARS Clause 252.219-7003 to determine the extent an offer meets the requirements outlined in RFO

FAR 52.219-9 and DFARS 215.304. Documents will be evaluated on a pass/fail basis and be determined to be either acceptable (pass) or unacceptable (fail).

Volume II - Price.

The Pricing volume will be examined to determine the degree to which the grand total price and the price per test panel compares to the price a reasonable prudent person would expect to incur for the same or similar services. A price analysis will be conducted which may use techniques such as market research, comparison of current pricing, and/or an Independent Government Cost Estimate.

All items will be evaluated individually on a pass/fail basis and determined whether complete (pass) or incomplete (fail).

Additional Contract Terms and Conditions are as follows:

RFO FAR Clauses Incorporated by Reference

52.203-3 Gratuities.	Apr 1984
52.203-6 Restrictions on Subcontractor Sales to the Government. (Alternate I)	Nov 2021
52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.203-12 Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020
52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017
52.204-7 System for Award Management-Registration.	Feb 2026
52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards.	Feb 2026
52.204-13 System for Award Management-Maintenance.	Feb 2026
52.204-19 Incorporation by Reference of Representations and Certifications.	Dec 2014
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation.	Nov 2015
52.209-5 Certification Regarding Responsibility Matters.	Aug 2020
52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.	Feb 2026
52.209-7 Information Regarding Responsibility Matters.	Feb 2026
52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters.	Feb 2026
52.209-10 Prohibition on Contracting with Inverted Domestic Corporations.	Feb 2026
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a	

Felony Conviction under any Federal Law.	Feb 2016
52.212-1 Instructions to Offerors-Commercial Products and Commercial Services.	Feb 2026
52.212-4 Terms and Conditions-Commercial Products and Commercial Services.	Feb 2026
52.217-5 Evaluation of Options.	July 1990
52.219-1 Small Business Program Representations.	Feb 2024
52.219-8 Utilization of Small Business Concerns.	Jan 2025
52.219-9 Small Business Subcontracting Plan.	Jan 2025
52.219-16 Liquidated Damages-Subcontracting Plan.	Sep 2021
52.222-3 Convict Labor.	Feb 2026
52.222-35 Equal Opportunity for Veterans.	Feb 2026
52.222-36 Equal Opportunity for Workers with Disabilities.	Feb 2026
52.222-37 Employment Reports on Veterans.	Feb 2026
52.222-40 Notification of Employee Rights Under the National Labor Relations Act.	Feb 2026
52.222-50 Combating Trafficking in Persons.	Feb 2026
52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services - Requirements.	May 2014
52.222-54 Employment Eligibility Verification.	Feb 2026
52.223-23 Sustainable Products.	Feb 2026
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.229-11 Tax on Certain Foreign Procurements—Notice and Representation.	Jun 2020
52.229-12 Tax on Certain Foreign Procurements.	Feb 2021
52.232-18 Availability of Funds.	Apr 1984
52.232-33 Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018
52.232-40 Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.233-1 Disputes.	May 2014
52.233-3 Protest after Award.	Feb 2026
52.233-4 Applicable Law for Breach of Contract Claim.	Feb 2026
52.237-7 Indemnification and Medical Liability Insurance	Feb 2026

52.240-90 Security Prohibitions and Exclusions Representations and Certifications.	Feb 2026
52.240-91 Security Prohibitions and Exclusions.	Feb 2026
52.240-93 Basic Safeguarding of Covered Contractor Information Systems.	Feb 2026
52.242-13 Bankruptcy.	July 1995
52.244-6 Subcontracts for Commercial Products and Commercial Services.	Feb 2026
52.247-34 F.o.b. Destination.	Jan 1991

DFARS Clauses Incorporated by Reference

252.201-7000 Contracting Officer's Representative.	Dec 1991
252.203-7000 Requirements Relating to Compensation of Former DoD Officials.	Sep 2011
252.203-7002 Requirement to Inform Employees of Whistleblower Rights.	Dec 2022
252.203-7005 Representation Relating to Compensation of Former DoD Officials.	Sep 2022
252.204-7003 Control of Government Personnel Work Product.	Apr 1992
252.204-7008 Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016
252.204-7009 Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023
252.204-7012 Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024
252.204-7016 Covered Defense Telecommunications Equipment or Services —Representation.	Dec 2019
252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services—Representation.	May 2021
252.204-7019 Notice of NISTSP 800-171 DoD Assessment Requirements.	Nov 2023
252.204-7020 NIST SP 800-171 DoD Assessment Requirements.	Nov 2023
252.204-7022 Expediting Contract Closeout.	May 2021
252.204-7024 Notice on the Use of the Supplier Performance Risk System.	Mar 2023
252.205-7000 Provision of Information to Cooperative Agreement Holders.	Oct 2024
252.209-7004 Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019
252.225-7012 Preference for Certain Domestic Commodities.	Apr 2022

252.225-7052 Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024
252.225-7055 Representation Regarding Business Operations with the Maduro Regime.	May 2022
252.225-7056 Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023
252.225-7059 Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023
252.225-7060 Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023
252.226-7001 Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023
252.232-7003 Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018
252.232-7010 Levies on Contract Payments.	Dec 2006
252.237-7010 Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023
252.243-7001 Pricing of Contract Modifications.	Dec 1991
252.243-7002 Requests for Equitable Adjustment.	Dec 2022
252.244-7000 Subcontracts for Commercial Products or Commercial Services.	Nov 2023
252.247-7023 Transportation of Supplies by Sea.	Oct 2024

RFO FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 7 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.233-2

Service of Protest. (Sept 2006)

a) Protests, as defined in section [33.101](#) of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from mary.e.shifflett2.civ@health.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1

Solicitation Provisions Incorporated by Reference. (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

52.252-2

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/>

(End of clause)

52.252-5

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an

authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **DFARS (48 CFR Chapter 2)** provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.252-6

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFAR Clauses Incorporated by Full Text

252.204-7008 Compliance with Safeguarding Covered Defense Information Controls. (Oct 2016)

(a) *Definitions.* As used in this provision—

“Controlled technical information,” “covered contractor information system,” “covered defense information,” “cyber incident,” “information system,” and “technical information” are defined in clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012, shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012 (b)(2)—

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 “Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations” (see <http://dx.doi.org/10.6028/NIST.SP.800-171>) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2)(i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of—

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

(End of provision)

252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.
(Jan 2023)

(a) *Definitions.* As used in this clause—

“Covered defense telecommunications equipment or services” means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation, or any subsidiary or affiliate of such entities;
- (2) Telecommunications services provided by such entities or using such equipment; or
- (3) Telecommunications equipment or services produced or provided by an entity that the Secretary of Defense reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

“Covered foreign country” means—

- (1) The People’s Republic of China; or
- (2) The Russian Federation.

“Covered missions” means—

- (1) The nuclear deterrence mission of DoD, including with respect to nuclear command, control, and communications, integrated tactical warning and attack assessment, and continuity of Government; or
- (2) The homeland defense mission of DoD, including with respect to ballistic missile defense.

“Critical technology” means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

“Substantial or essential component” means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) *Prohibition.* In accordance with section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), the contractor shall not provide to the Government any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless the covered defense telecommunication equipment or services are covered by a waiver described in Defense Federal Acquisition Regulation Supplement 204.2104.

(c) *Procedures.* The Contractor shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service, to carry out covered missions, that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Reporting.*

(1) In the event the Contractor identifies covered defense telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, the Contractor shall report at <https://dibnet.dod.mil> the information in paragraph (d)(2) of this clause.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 30 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a covered defense telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to—

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4 (c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification*].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six-position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2IN1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	N/A
Issue By DoDAAC	HT9406
Admin DoDAAC**	HT9406
Inspect By DoDAAC	N/A
Ship To Code	N/A
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	HT0242
Service Acceptor (DoDAAC)	HT0242
Accept at Other DoDAAC	N/A
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity’s WAWF point of contact.

Contracting Officer Representative:

POC

Email:

Phone:

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)